

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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GERALD COULTER, KIJAFAL TINE,
NIESHAWN OSMOND and TERRELL
WALKER,

Plaintiffs,

-against-

09 Civ. 4820 (NG)(LB)

AMENDED COMPLAINT

JURY DEMAND

THE CITY OF NEW YORK, POLICE
POLICE OFFICER SEAN FINNEGAN
(Shield # 14095), POLICE OFFICER
BRYAN ROTHWELL (Shield # 10772)
POLICE OFFICER LUIS ESCOBAR
(Shield # 10001), POLICE OFFICER
JOSEPH FERNANDEZ (Shield # 22694)
and POLICE OFFICERS JOHN DOE 1-4,

Defendants.

-----x
Plaintiffs GERALD COULTER, KIJAFAL TINE, NIESHAWN OSMOND and
TERRELL WALKER, by their attorney(s), THE LAW OFFICES OF WALE MOSAKU,
P.C., complaining of the defendants, THE CITY OF NEW YORK, POLICE OFFICER
SEAN FINNEGAN (Shield # 14095), POLICE OFFICER BRYAN ROTHWELL (Shield
10772), POLICE OFFICER LUIS ESCOBAR (Shield # 10001), POLICE OFFICER
JOSEPH FERNANDEZ (Shield # 22694) and POLICE OFFICERS JOHN DOE 1-4
(collectively referred to as the Defendants), upon information and belief, allege as
follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to
the plaintiffs under color of statute, ordinance, regulation, custom;
and/or to redress the deprivation of rights, privileges, and immunities
secured to the plaintiffs by the Fourth, Fifth and Fourteenth
Amendments to the Constitution of the United States, and by Title 42

U.S.C. §1983 [and §1985], [and arising under the law and statutes of the State of New York].

JURISDICTION

2. The jurisdiction of this Court is invoked under 28 U.S.C. §1343(3), this being an action authorized by law to redress the deprivation of rights secured under color of state and city law, statute, ordinance, regulation, custom and usage of a right, privilege and immunity secured to the plaintiffs by the Fourteenth Amendment to the Constitution of the United States. Jurisdiction of this court exists pursuant to 42 USC §1983 and under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.
3. As the deprivation of rights complained of herein occurred within the Eastern District of New York, venue is proper in this district pursuant to 28 U.S.C. §§1391 (b) and (c).

THE PARTIES

4. During all times material to this complaint, each plaintiff was, and still is, a resident of the State of New York, presently residing in Kings County.
5. At all relevant times, defendants POLICE OFFICER SEAN FINNEGAN (Shield # 14095), POLICE OFFICER BRYAN ROTHWELL (Shield # 10772), POLICE OFFICER LUIS ESCOBAR (Shield # 10001), POLICE OFFICER JOSEPH FERNANDEZ (Shield # 22694) and POLICE OFFICERS JOHN DOE 1-4 (collectively referred to as defendant officer(s)), upon information and belief, were and still are, law enforcement officers in the employ of the Police Department of the City of New York.
6. At all times herein, the defendant officers were employed as law enforcement officers of the City of New York, State of New York, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant

officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and its Police Department.

7. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant Officers, through it's Police Department, namely New York City Police Department and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.

8. Plaintiffs sue all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

9. All conditions precedent to the filing of this action have been complied with. On February 24, 2009, within ninety days after all or some of the claims alleged in this complaint arose, written notice(s) of claim, sworn to by each of the plaintiffs GERALD COULTER, KIJAFAL FALTINE and TERRELL WALKER, were served upon the defendant City of New York, by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff GERALD COULTER's claim was assigned the Claim No. 2009PI005982. Plaintiff KIJAFAL FALTINE's claim was assigned the Claim No. 2009PI005759. Plaintiff TERRELL WALKER's claim was assigned the Claim No. 2009PI005761.
10. At least thirty days have elapsed since the service of the above-mentioned notice(s) of claim, and adjustment or payment of the claim(s) have been neglected or refused.
11. This action, pursuant to New York State and City Law, has been commenced within one year after the happening of the event upon which the claim(s) are based.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

12. On or about February 17, 2009 at approximately 12:00 p.m., on or about a sidewalk located on Georgia Avenue, between Sutter Avenue and Blake Avenue, in Brooklyn, Kings County, New York City and State, the plaintiffs were each falsely arrested without probable cause by the defendant officers.
13. At the above-referenced place and time, the plaintiffs, who were standing by a vehicle that the plaintiff Gerald Coulter had rented, and engaged in a conversation, were without any basis or justification, approached by defendant officers, who had pulled up in an undercover police van.
14. The defendant officers informed the plaintiffs that they had “*run the plates*” of the vehicle, and the plates “*did not match up*”. The plaintiffs were ordered to “*get behind the vehicle*”.
15. The plaintiffs were each then unlawfully searched by said officers, despite the fact that there was absolutely no basis and/or probable cause for said searches. The defendant officers did not find anything illegal on the persons of any of the plaintiffs.
16. The defendant officers then asked the plaintiffs who the vehicle belonged to. The plaintiff Gerald Coulter informed the defendant officers that he was in possession of the vehicle, that the vehicle was rented, and the rental agreement was in the glove compartment.
17. The defendant officers, without probable cause, started to search the vehicle. The vehicle was searched approximately three to four times. Nothing illegal was found within the vehicle.
18. One of the defendant officers then went back to their undercover van, and retrieved something. The defendant officers then searched the vehicle again, and this time claimed that they had found some empty plastic bags within the vehicle. However, the defendant officers did not claim that there were any illegal drugs within the plastic bags that they claimed they had recovered.

19. The plaintiffs were then immediately arrested, and driven around in a van for approximately one hour and a half (1½) hours.
20. The plaintiffs were eventually driven to Highland Park, located on the Brooklyn-Queens border, by the defendant officers.
21. Upon information and well-founded belief, POLICE OFFICER SEAN FINNEGAN (Shield # 14095), POLICE OFFICER BRYAN ROTHWELL (Shield # 10772) and POLICE OFFICER LUIS ESCOBAR (Shield # 10001) were the officers assigned to the prisoner van within which the plaintiffs were transported on the date of the incident.
22. Upon arrival at Highland Park, the defendant officers assigned to the prisoner van attempted to forcibly strip-search each plaintiff in a bathroom located within said park. The plaintiffs were each handcuffed to the urinal in the bathroom, while the defendant officers attempted to strip-search each plaintiff. The plaintiffs refused to be strip-searched at Highland Park.
23. The defendant officers were prevented from physically forcing each plaintiff to be strip-searched at Highland Park, because certain employees of said park, curious at the presence of the defendant officers and the plaintiffs within said bathroom, kept going in to the bathroom, presumably in order to ascertain the defendant officers purpose within said bathroom.
24. Frustrated in their illegal purpose, the defendant officers then informed the plaintiffs' that "*when you get to the precinct, your pants are coming off*".
25. At or about 04:00 p.m., the plaintiffs were taken to the 75th police precinct. At the 75th police precinct, the plaintiffs were each unlawfully and forcibly strip-searched by the defendant officers within a cell located within said precinct. Nothing illegal was found on any of the plaintiffs.

26. The plaintiffs were then informed that they were going to be “*checked for warrants*”, and if there were none, they would be released.
27. However, after approximately three hours, the defendant officers returned and stated that one of the defendant officers had claimed that he had observed them smoking an (unspecified) illegal substance. The plaintiffs were then photographed and fingerprinted.
28. At approximately 01:00 a.m. on February 18, 2009, the plaintiffs were taken to central booking, located within the criminal courthouse at 120 Schermerhorn Street, in Brooklyn, New York.
29. The plaintiffs were each subsequently arraigned before a judge at approximately 03:00 p.m., on February 18, 2009.
30. Upon pleading “not guilty”, each plaintiff was ordered released upon his own recognizance. The plaintiffs were each released at approximately 12:00 a.m. on February 19, 2009.
31. In the documents exchanged by the defendants attorneys, the defendant officers falsely alleged: that they were conducting a SNEU (upon information and belief “special narcotics enforcement unit”) operation when they observed the plaintiffs purportedly smoking marijuana; that they purportedly pulled over the vehicle that they falsely allege the plaintiffs were purportedly in, at which point they purportedly “*smelled a strong odor of marijuana and observed two ziplock bags containing marihuana residue in the center console*” of said vehicle; and that incredibly, plaintiff Gerald Coulter who they allege was driving the vehicle “*made a spontaneous utterance*” that plaintiffs were all smoking marihuana; that the plaintiffs were then placed under arrest.
32. To date, the defendants have not produced any evidence and/or proof, such as vouchers or confirmatory laboratory reports, which would support their contention that the plaintiffs were indeed in possession of illegal narcotics.

33. The criminal action against the plaintiff Nieshawn Osmond was dismissed on February 25, 2009. The criminal action against the plaintiff Gerald Coulter was dismissed on April 22, 2009. The criminal action against the plaintiff Kijafa Faltine was dismissed on April 22, 2009. The criminal action against the plaintiff Terrell Walker was dismissed on April 22, 2009.
34. Finally, each plaintiff has necessarily been caused out of pocket expenses.

CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER
42 U.S.C § 1983/NEW YORK STATE LAW

35. By this reference, the plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 34 of this complaint as though fully set forth herein.
36. The above-described respective arrest(s), detention(s) and imprisonment(s) of the plaintiffs were without just or probable cause and without any warrant or legal process directing or authorizing each plaintiff's arrest or subsequent detention.
37. As a result of plaintiffs above-described false arrest(s) and imprisonment(s), they have been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know them, were prevented from attending to their necessary affairs, have been caused to incur legal expenses, and have been otherwise damaged in their character and reputation.
38. Consequently, the plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.
39. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.

CAUSE(S) OF ACTION: MALICIOUS PROSECUTION UNDER 42 U.S.C §
1983/NEW YORK STATE LAW

40. By this reference, the plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 39 of this complaint as though fully set forth herein.
41. The commencement and continued prosecution of the criminal judicial proceeding against each plaintiff, including the arrest, the imprisonment, and the charges against each plaintiff, were committed by or at the insistence of the defendant officers, without probable cause or legal justification, and with malice.
42. That said defendants were directly involved in the initiation of criminal proceedings against each plaintiff.
43. That said defendants lacked probable cause to initiate criminal proceedings against each plaintiff.
44. That said defendants acted with malice in initiating criminal proceedings against each plaintiff.
45. That said defendants were directly involved in the continuation of criminal proceedings against each plaintiff.
46. That said defendants lacked probable cause in continuing criminal proceedings against each plaintiff.
47. That said defendants acted with malice in continuing criminal proceedings against each plaintiff.
48. That said defendants misrepresented and falsified evidence throughout all phases of the criminal proceeding against each plaintiff.
49. That said defendants misrepresented and falsified evidence to the prosecutors in the Kings County District Attorney's office.
50. That said defendants withheld exculpatory evidence from the prosecutors in the Kings County District Attorney's office.
51. That said defendants did not make a complete statement of facts to the prosecutors in the Kings County District Attorney's office.

52. The criminal judicial proceeding initiated against each plaintiff was dismissed, and terminated in each plaintiff's favor.
53. The arrest, imprisonment and prosecution of each plaintiff was/were malicious and unlawful because the plaintiffs had not committed any crime and there was no probable cause to believe that each plaintiff had committed any crimes.
54. The defendants actions were intentional, unwarranted and in violation of the law. The individual defendants had full knowledge that the charges made before the Court against each plaintiff were false and untrue.
55. As a consequence of the malicious prosecution by the defendants, each plaintiff suffered a significant loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and their constitutional rights were violated. Each plaintiff hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against each of the defendants, individually and severally.

CAUSE OF ACTION: UNLAWFUL SEARCH UNDER 42 U.S.C §
1983

56. By this reference, the plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 55 of this complaint as though fully set forth herein.
57. That upon initially accosting the plaintiffs, the defendant officers illegally and unlawfully searched the plaintiff Gerald Coulter's rental vehicle, without probable cause, or any reasonable suspicion that said vehicle contained any weapons or contraband.
58. That upon initially accosting the plaintiffs, the defendants searched and/or caused each plaintiff to be searched, without any individualized reasonable suspicion that said plaintiff was concealing weapons or contraband.

59. Following each plaintiff's arrest, the defendants strip-searched and/or caused each plaintiff to be strip-searched, without any individualized reasonable suspicion that said plaintiff was concealing weapons or contraband.

60. As a result of the foregoing, the plaintiffs were subjected to illegal and improper searches.

61. The foregoing searches violated the plaintiffs' constitutional right to privacy, as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

CAUSE OF ACTION: FAILURE TO INTERVENE/INTERCEDE

UNDER 42 U.S.C § 1983

62. By this reference, the plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 61 of this complaint as though fully set forth herein.

63. Each and every individual defendant had an affirmative duty to intervene on each plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.

64. The individual defendants failed to intervene on each plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.

65. As a consequence of said defendants' actions, each plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and each plaintiff's constitutional rights were violated. Each plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

CAUSE OF ACTION: DENIAL OF A CONSTITUTIONAL RIGHT

TO A FAIR TRIAL UNDER 42 U.S.C § 1983 DUE TO THE

FABRICATION OF EVIDENCE

- 66. By this reference, the plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 65 of this complaint as though fully set forth herein.
- 67. The individual defendants created false evidence against each plaintiff.
- 68. The individual defendants forwarded false evidence and false information concerning each plaintiff to the prosecutors in the Kings County District Attorney's office.
- 69. The individual defendants provided false testimony throughout the criminal proceedings.
- 70. By creating false evidence against each plaintiff; forwarding false evidence and information to the prosecutors; and by providing false and misleading testimony throughout the criminal proceedings, the defendants violated each plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments to the United States Constitution.
- 71. As a consequence of said defendants' actions, each plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and each plaintiff's constitutional rights were violated. Each plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

CAUSE OF ACTION: MUNICIPAL LIABILITY UNDER 42 U.S.C § 1983

- 72. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 71 of this complaint as though fully set forth herein.
- 73. The defendants arrested and incarcerated each plaintiff, in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest(s) and incarceration(s) would jeopardize each plaintiff's liberty, well-being, safety and constitutional rights.

74. The acts complained of were carried out by the individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.
75. The defendant officers acted under color of law, in their official capacity, and their acts were performed pursuant to the customs, policies, usages, practices, procedures and rules of the City of New York and its police department.
76. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and its police department include, but are not limited to the following unconstitutional practices:
 - a. Wrongfully arresting individuals on the pretext that they are/were involved in drug transactions;
 - b. manufacturing evidence against individuals allegedly involved in drug transactions;
 - c. unlawfully strip-searching pre-arraignment detainees in the absence of any reasonable suspicion that said individuals were concealing weapons or contraband; and arresting innocent persons in order to meet "productivity" goals (i.e. arrest quotas).
77. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the numerous civil rights actions filed against the City of New York in the state and federal courts.
78. The existence of the aforesaid unconstitutional customs and policies may also be inferred from the admission by Deputy Commissioner Paul J. Browne, as reported by the media on January 20, 2006, that commanders are permitted to set "productivity goals".
79. Furthermore, the existence of the aforesaid unconstitutional customs and policies may also be inferred from the ruling (Docket entry 32) of the Court, in the case(s) of Jose Colon v. City of New York, et al (09-cv-8) and Maximo Colon v. City of New York, et al (09-cv-9), wherein the Court stated, *inter alia*, that "*Informal inquiry by the*

court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting officers of the New York City Police Department", and that "there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving the illegal conduct of the kind now charged".

80. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York, constituted a deliberate indifference to the safety, well-being and constitutional rights of all defendants, including but not limited to the plaintiff; were the proximate cause of, and moving force behind, the constitutional violations suffered by the plaintiff as alleged herein, and deprived plaintiff of the following rights, privileges and immunities secured to her by the Constitution of the United States:

- (a) The right of each plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States.
- (b) The right of each plaintiff not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the laws, secured to him by the Fifth and Fourteenth Amendments to the Constitution of the United States.
- (c) The right to be free from unreasonable detention and/or continued detention without probable cause in that each plaintiff was detained and subsequently prosecuted.

81. As a result of the actions of the defendants, each plaintiff was deprived of his rights, privileges, and immunities secured by the United States Constitution, in particular, the Fourth, Fifth, and Fourteenth Amendments, in contravention of 42 USC §1983 and the laws of New York State, without just or legal cause when defendant City, by its employees and/or agents unlawfully arrested and

imprisoned each plaintiff thereby depriving each plaintiff of his liberty without due process of law.

82. The defendant officers were the actual agents of the defendant City of New York and were following the customs, practices, ordinances and/or regulations of the City of New York when they violated the plaintiffs constitutional and civil rights, and the City of New York is therefore responsible for their acts, and liable to the plaintiffs for the damages they suffered.

83. The actual principal/agent relationship between defendant City and the defendant officers was created by the fact they were employees of defendant City, and the City had the right to, and it did indeed regulate and control the activities and conduct of the defendant officers.

84. The defendants' actions were vicious, wicked, cold-hearted, intentional, malicious, unwarranted and in violation of the law. The individual defendants had full knowledge that the charges made before the Court against the plaintiffs were false and untrue.

WHEREFORE, plaintiff respectfully prays judgment as follows:

1. For compensatory damages against all defendants in an amount to be proven at trial;
2. For exemplary and punitive damages against all defendants in an amount to be proven at trial;
3. For costs of suit herein, including plaintiff's reasonable attorney's fees; and;
4. For such other and further relief as the court deems proper.

DEMAND FOR TRIAL BY JURY

Pursuant to Rule 38 (b) of the Federal Rules of Civil Procedure, each plaintiff demands a trial by jury.

Dated: Brooklyn, New York
April 16, 2010

LAW OFFICES OF WALE MOSAKU, P.C.

By: /s/

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